

August 07, 2020



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11489
(SIXTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain unapproved or unidentified as approved, safety devices as defined in § 173.166 as Division 1.4C explosives articles, subject to the packaging and special provisions prescribed herein. The safety devices may also contain flammable or non-flammable compressed gas mixtures. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of a transport vehicle or other device or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.320 in that the marking requirements are waived and § 173.56(b), in that the requirements for examination, classing and approval of safety devices as either Class 9, Division 2.1 or Division 2.2 articles are waived.

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5. BASIS: This special permit is based on the application of Joyson Safety System dated July 17, 2019 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Articles, explosive, n.o.s. (Safety Devices)	1.4C	UN0351	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

- (1) INNER PACKAGING: Receptacle, fiberboard, metal, plastic or wood, containing not more than 10 safety devices each, and with sufficient cushioning between devices to prevent movement during transport.
- (2) OUTER PACKAGING: Non-specification BATF Type 3 steel magazine box per 27 CFR 555.209; or a fire-resistant safe; or an IME Safety Library Publication 22 container. Not more than 50 safety devices may be contained within the outer packaging.

b. OPERATIONAL CONTROLS:

- (1) Not more than fifty outer packagings may be transported per motor vehicle or freight container.
- (2) This special permit only authorizes carriage of safety devices between the grantee's laboratory or manufacturing facilities, and customer or laboratory testing locations and disposal facilities.

8. SPECIAL PROVISIONS:

a. Shipments covered by this special permit are for development and evaluation of product and do not require EX-Approval Numbers to be marked on the outer packaging or incorporated with the proper shipping description.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. When a safety device contains a non-flammable or flammable gas or mixture thereof, the pressure vessel/device must meet:

(1) One of the specifications for cylinders contained in Part 178, Subpart C - Specification for cylinders;

(2) A DOT special permit that authorizes the manufacture, mark, sale and use of pressure vessels for use as components of safety systems; or

(3) Section 173.306(a); or

(4) Pressure vessels not meeting the requirements of subparagraphs (1), (2), and (3) may be transported only between the grantee's laboratory, manufacturing facilities, or independent cylinder inspectors' facilities for customer or regulatory compliance testing if the rated service pressures do not exceed 80% of the test pressure at 212 °F, are designed to have a burst pressure greater than or equal to 2.5 times the service pressure and the water volume of each cylinder does not exceed one liter.

d. Shipments of safety devices which utilize a non-DOT specification pressure vessel authorized under a special permit do not require the special permit number for the non-specification pressure vessel to be marked on the outer packaging or on shipping papers.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel.

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10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle or cargo vessel used to transport packages covered by this special permit.

b. Transportation of safety devices is limited to private carriage or other carriers under contract to the holder or a party to this special permit. When contract carriers are utilized for the shipment of fire-resistant safe or IME 22 box, no other hazardous materials may be transported within the same cargo carrying body on a transport vehicle or freight container.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special

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permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BV/TG